Plant Varieties Journal

September 1992 Volume 5 Number 3



Official Journal of the Australian Plant Variety Rights Office


INVITATION
YOU ARE INVITED TO PARTICIPATE IN
THE FUTURE OF YOUR PVR SCHEME.
YOUR VIEWS ARE IMPORTANT TO US.
DON'T MISS THE EDITORIAL
IN THIS ISSUE FOR DETAILS

Contents

Editorial 2

Part 1—General

Strong demand from breeders for molecular techniques 3
Granting of PVR on the basis of overseas test reports 3
Strawberries 4
Accreditation for qualified persons 4

Part 2—Public Notices

List of varieties included in this journal 4
PVR Granted 5
Assignment of PVR 6
PVR Revoked 6
Applications Accepted
(a) descriptions finalised 6
(b) descriptions to be finalised 17
Objections 20
Applications Varied 20
Corrigenda 21
Appendix 1—Fees 21
Appendix 2—Plant Variety Rights Advisory Committee (PVRAC) 22
Appendix 3—Addresses of Plant Variety Protection Offices in UPOV member states 22
Appendix 4—Letters to the Editor 23

PLANT VARIETY RIGHTS OFFICE, GPO BOX 858, CANBERRA ACT 2601
Telephone: (06) 272 4228 Facsimile: (06) 272 3650

Subscriptions are available from the
Plant Variety Rights Office,
Department of Primary Industries and Energy,
GPO Box 858,
Canberra, ACT, 2601.

ISSN: 1030 9748

This publication is copyright. Apart from any use as permitted under the Copyright Act 1968, no part may be reproduced without written permission from the Director, Plant Variety Rights. Inquiries should be directed to the Director, Plant Variety Rights Office, GPO Box 858, Canberra ACT 2614

Editorial



Dr Mick Lloyd

The Plant Variety Rights Scheme in Australia is to be evaluated under the Commonwealth Government's Financial Management Improvement Program (FMIP) in which Government programs are evaluated every three to five years. When Cabinet established the PVR Scheme in 1986 one of the conditions attached to the allocation of funds was that the Scheme be reviewed in five years.

This is an opportunity for you to participate in moulding the future of your PVR Scheme.

Program evaluation under the Department of Finance guidelines is a systematic assessment of the program to determine:

- its appropriateness, effectiveness and efficiency;
- the need for changes to the program; and
- if resources should continue at current levels, be increased, reduced or discontinued.

The intended outcome of a program evaluation is better program management, more accountability, more informed decision-making, better resource allocation, more efficiency and an overall improved performance. In view of this, the Plant Variety Rights Office fully supports the evaluation since the outcomes of FMIP evaluations are consistent with aims of the PVR Office team—an improved and more cost-effective PVR Scheme.



Libby Pulsford

The PVR Advisory Committee (PVRAC) formulated the evaluation strategy, but will not itself undertake the evaluation. An independent consultant will conduct the evaluation and report direct to an impartial Government Steering Committee. An essential part of PVRAC's evaluation strategy is public consultation. The views of all readers and interest groups are being canvassed for consideration in the evaluation. Considering the purpose of the evaluation and Department of Finance guidelines, comment should, inter alia, address one or more of the following:



Mark Kethro

- effectiveness and impact of the PVR Scheme in Australia;
- operational efficiency of the scheme and suggested improvements in procedures;
- fee structure and services provided by the PVR Office;
- need for, and/or domestic obligations of, a PVR Scheme in Australia;
- cost-benefits of fulfilling Australia's obligations under the UPOV convention;
- efficiencies arising from, and degree of, integration of PVR Office with the Patents office.

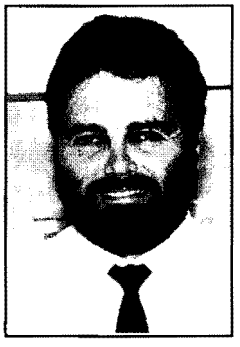
You are invited to take this opportunity to contribute to the development of a more effective system for the legal protection of plant varieties in Australia by sending your comments by **16 OCTOBER 1992** to:

The Chairperson, PVR Advisory Committee , GPO Box 858, Canberra, 2601.



Margaret Winsbury

CLOSING DATE FOR DECEMBER ISSUE
22 OCTOBER 1992



David Thearle

Editorial Panel:

	Registrar:	Dr Mick Lloyd
	Examiners:	David Thearle, Mark Kethro, Libby Pulsford, Shirley Gourgaud
	Administration:	Margaret Winsbury

Assistance with scientific names from Lyn Craven, Australian National Herbarium, Division of Plant Industry, CSIRO.

The editors welcome comments and short articles from all sectors of the plant breeding industry for publication in the Plant Varieties Journal. Authors should follow the guide at Appendix 4.

Part 1—General

Strong Demand from breeders for molecular techniques

A workshop held in Toowoomba on 30 July established that a strong demand exists among breeders, seed producers and horticulturalists for information on the use of molecular techniques to characterise plants for PVR applications and other purposes.

The workshop, which was co-sponsored by the Cooperative Research Centre for Plant Science and the PVR Office, and hosted by the Queensland Wheat Research Institute, was attended by thirty-two breeders, growers and researchers from Queensland and interstate.

The workshop received five presentations:

- Chris Buller discussed the **role of the CRC for Plant Science** and the opportunity to make information on useful molecular techniques, now used routinely by plant science researchers, available to those seeking PVR. These techniques had emerged only relatively recently and were constantly undergoing development, simplification and refinement. Mr Buller said the Plant Science Centre is in a consultative phase, establishing the needs and priorities of industry sectors;
- Bruce Lloyd from the Sydney firm of solicitors Blake Dawson Waldron presented the **legal position concerning PVR applications**, emphasising particularly that there was no legal impediment to the use of molecular characterisation of distinctiveness under the *Plant Variety Rights Act 1987*;
- Dr Mick Lloyd (Director, PVR Office) spoke about the **testing procedure** for PVR registration. Molecular characterisation, he believed, offered the means of proving distinctiveness in a number of existing problem areas, thereby assisting breeders to gain variety registration more quickly and with less expense. Model DUS criteria were discussed. Dr Lloyd expressed support for the Plant Science Centre's moves to test industry interest and develop protocols for the use of molecular characterisation techniques;
- Dr Matthew Morell (Research Fellow, ANU) outlined the **principal techniques for molecular characterisation**. He indicated that while there are many techniques available, and many variations on each technique, they can be classed in three groups:
  - — analysis of proteins, including isozyme analysis and protein banding;
  - — analysis of DNA, including restriction fragment length polymorphisms (RFLP mapping), polymerase chain reactions (PCR) and the random amplified polymorphic DNA (RAPD) variation; and
  - — other techniques such as gas chromatography;
- Dr Rudi Appels (Senior Principal Research Scientist, CSIRO Division of Plant Industry) presented a series of **case studies in molecular characterisation of plants**. These illustrated how various molecular techniques could be used to solve identification problems.

Responses to a questionnaire circulated at the workshop showed that plant breeders, seed producers researchers and other sectors saw considerable value in the techniques. Ninety percent of respondents were very interested in development of the techniques—predominantly for PVR application purposes or to assist plant breeding by enhancing varietal identification. Over three-quarters had either applied for PVR or were considering doing so and these respondents regarded molecular characterisation as either very important or vital in PVR applications.

The way forward

The Plant Science Centre and PVR Office are now convinced of the benefit of developing a set of protocols for use of the various molecular characterisation techniques. The Plant Science Centre has begun work devising protocols and worksheets for protein analysis, RFLP mapping and PCR techniques. These should be published by the end of the year.

It is also emerging that there is demand for a research, development and service laboratory to:

- prove the application of various techniques to particular species;
- provide routine services to growers and breeders, characterising varieties and making regular assessments of samples;
- help owners of PVR maintain their position in the market place by protecting their investment;
- tackle specific molecular, novel, scientific problems encountered by breeders, horticulturalists, importers and so on.

The Plant Science Centre is considering strategies by which this emerging need could be met. It seems probable that an association between an R&D body and a commercial group in the agribusiness field would be the most vigorous hybrid.

The Centre would welcome comments and suggestions from growers, breeders and companies.

Chris Buller, Executive Officer
CRC for Plant Science,
RSBS, ANU, GPO Box 4, Canberra ACT 2601

Granting of PVR on the basis of overseas test reports

PVRO will continue to consider overseas test reports as the basis for granting PVR in Australia. A minimum requirement is that the applicant submit with their application a test report which is substantially based on the UPOV technical guidelines for the species (or similar species).

The test report should also include comparative data of the candidate variety and varieties of common knowledge at the time of the test growing.

To enable PVRO to determine if the overseas data is eligible for granting of PVR in Australia, applicants must provide with the overseas data an authenticated statement on the conditions and protocols of the test growing including:

- latitude, altitude, soil type, sowing date, crop management, trial layout and sampling procedures.

In the case of chemical assay results, applicants must include reference to assay methods.

Procedure

Applicants wishing to use an overseas test report (not a technical questionnaire) should submit:

- a valid application (Part 1 of the application form, photograph and the application fee),
- a certified
  - — copy of the test report from the overseas PVR testing authority
  - — description of the testing methodology and conditions

PVRO will advise applicants at the time of acceptance if a test growing is necessary and what additional information, if any, is required for the examination to proceed.

Strawberries

Five strawberry varieties were described in the June 1992 issue of Plant Varieties Journal. That issue stated that the Regents of the University of California are the applicants and Peter Maxwell and Associates of North Parramatta their Australian agent. That information was correct. The June issue did not include the role of the Toolangi Certified Strawberry Runner Growers Co-operative Limited.

The Toolangi Co-operative is a licensee of the University of California for 'Chandler', 'Fern', 'Parker', 'Santana', 'Selva' and some other University of California Strawberry varieties. Enquiries concerning these varieties can be directed to the Toolangi Strawberry Runner Growers Co-operative Ltd (telephone 059 629220) or to Peter Maxwell and Associates of North Parramatta.

Accreditation of Qualified Persons

As announced in the March 1992 issue of Plant Varieties Journal, the PVR Office (PVRO) is introducing an accreditation scheme for qualified persons. The process of accreditation is continuing and a list of accredited qualified persons will be availabe from the PVRO by the end of September.

The response to the scheme has been good, but the PVRO has not received any applications from many nurseries which have previously participated in the PVR scheme.

The PVRO reiterates that it will not examine PVR applications unless the application is certified by an accredited qualified person.

For details of the scheme, please refer to Plant Varieties Journal Vol 5, No. 1, page 4, March, 1992.

Part 2—Public Notices

The following varieties are included in this Journal

	Variety	page number
Apple	'GB63–43'	19
Carnation	'Chanden'	6
	'Fantastic'	6
	'Gorzdana'	6
	'Metchta'	6
	'Neshka'	6
	'Odile'	6
	'Pirin'	6
	'Prolet'	6
	'Rubinen'	6
	'Valya'	6
	'Zlatka'	6
	'Zornitza'	6
Candytuft	'White Cloud'	19
Chickpea	'Norwin'	16
Chrysthanemum	'Cream Star'	15
	'Ulyssis'	15
Cotton	'DP 891'	18
Cupressus	'Limelight'	5
Desmanthus	'Bayamo'	18
	'Marc'	18
	'Uman'	18
Euphorbia	'Lemon Drop'	19
	'Milkmaid'	19
	'Pink Peppermint'	19
Ficus	'Reginald'	20
French Bean	'Gresham'	6
Hardenbergia	'Pink Fizz'	20
Heterocentron	'Green Cascade'	6
Hydrangea	'Kirsten'	10
	'LK 49'	10
	'Messalina'	17
	'Rotenfels'	17
Kangaroo Paw	'Lemon Whizz'	5
Leptospermum	'Aphrodite'	18
Limonium	'Daicean'	17
	'Oceanic Blue'	17
	'Oceanic White'	17
Lotus	'Grasslands Goldie'	20
Lucerne	'Caliph'	18
	'Sceptre'	20
Lysimachia	'Sunbird'	19
Mandarin	'Success'	18
	'Sunset'	6
Nectarine	'Artic Rose'	20
Paper Daisy	'Paper Cascade'	6
Pea	'Jupiter'	18
Peach	'Rich Lady'	20
Pimelea	'Pink Bouquet'	5
Plumbago	'Monott'	19
Plumcot	'Royal Velvet Plumcot'	18
Potato	'Nadine'	18
Rose	'Aotearoa'	7
	'Ausmit'	17
	'Brigadoon'	9
	'Carefree Wonder'	20
	'Cecilia'	5
	'City of Adelaide'	20
	'Class Act'	9
	'Happy Days'	5

	Variety	page number
	'Hans Christian Andersen'	6
	'Keinoumi'	5
	'Keitabu'	5
	'Keizoubu'	19
	'Kooiana Daybreak'	6
	'Meifrony'	5
	'Meijaudiair'	5
	'Meilivar'	5
	'Meiperol'	19
	'Meixtraflo'	5
	'Michelle Joy'	6
	'Pretty Polly'	20
	'Precious Michelle'	5
	'Rock & Roll'	6
	'Sheer Bliss'	6
	'White Flower Carpet'	18
	'White Simplicity'	8
	'Woman's Day'	17
Ryegrass	'Banks'	20
	'Guard'	20
	'Vedette'	18
Scabiosa	'Butterfly Blue'	18
	'Pink Mist'	18
Scaevola	'Petite'	19
Soybean	'Oxley'	5
Strawberry	'Redlands Delight'	19
	'Redlands Hope'	19
	'Redlands Joy'	19
	'Redlands Pinnacle'	19
	'Redlands Rose'	19
	'Redlands Surprise'	19
Waxflower	'Jenny Jane'	17
	'Jubilee'	17
	'Kismet'	17
	'Muchea Mauve'	17
Wheat	'Lawson'	6
Zoysia Grass	'El Toro'	18
Zygocactus	'Sanibel'	19
	'Windsor'	19

PVR Granted

Plant Variety Rights have been granted under Section 26 of the *Plant Variety Rights Act 1987*, and entry will be made in the Plant Variety Rights Register for the following varieties:

ROSE
Rosa

'Cecilia' Application No. 91/048
Grantee: **Mr Falk Hannemann**
Certificate No. 165
Expiry Date: 24 April 2011

'Meilivar' Application No. 90/109
Grantee: **SNC Meilland et Cie**
Certificate No. 166
Expiry Date: 30 October 2010

'Meijaudiair' Application No. 90/084
Grantee: **SNC Meilland et Cie**
Certificate No. 167
Expiry Date: 27 August 2010

'Keinoumi' Application No. 90/085
Grantee: **Universal Plants**
Certificate No. 168
Expiry Date: 22 October 2010

'Meifrony' Application No. 90/068
Grantee: **SNC Meilland et Cie**
Certificate No. 169
Expiry Date: 1 August 2010

'Meixtraflo' Application No. 90/067
Grantee: **SNC Meilland et Cie**
Certificate No. 170
Expiry Date: 1 August 2010

'Keitaibu' Application No. 90/069
Grantee: **Universal Plants**
Certificate No. 171
Expiry Date: 1 August 2010

CUPRESSUS
Cupressus glabra

'Limelight' Application No. 91/056
Grantee: **Peter and Ruth Donnelly**
Certificate No. 172
Expiry Date: 4 June 2011

KANGAROO PAW
Anigozanthus

'Lemon Whizz' Application No.90/099
Grantee: **Stephen Membrey and Rex Trimble**
Certificate No. 173
Expiry Date: 10 October 2010

SOYBEAN
Glycine max

'Oxley' Application No. 91/019
Grantee: **NSW Minister for Agriculture and Fisheries**
Certificate No. 174
Expiry Date: 6 March 2011

PIMELEA
Pimelea ferruginea

'Pink Bouquet' Application No. 91/057
Grantee: **George Lullfitz**
Certificate No. 175
Expiry Date: 1 July 2011

ROSE
Rosa

'Happy Days' Application No. 90/127
Grantee: **Sam McGredy Roses International**
Certificate No. 176
Expiry Date: 17 December 2010

'Precious Michelle' Application No. 90/128
Grantee: **Sam McGredy Roses International**

Certificate No. 177
Expiry Date: 17 December 2010

'Rock & Roll' Application No. 90/129
Grantee: **Sam McGredy Roses International**
Certificate No. 178
Expiry Date: 17 December 2010

'Michelle Joy' Application No. 90/130
Grantee: **Bear Creek Gardens Inc.**
Certificate No. 179
Expiry Date: 17 December 2010

'Hans Christian Andersen' Application No. 90/131
Grantee: **Poulsen Roser ApS**
Certificate No. 180
Expiry Date: 17 December 2010

PAPER DAISY
Helipterum anthemoides

'Paper Cascade' Application No. 91/024
Grantee: **Esma Salkin**
Certificate No. 181
Expiry Date: 4 April 2011

HETEROCENTRON
Heterocentron roseum

'Green Cascade' Application No. 91/106
Grantee: **Kientzler KG**
Certificate No. 182
Expiry Date: 24 October 2011

WHEAT
Triticum aestivum

'Lawson' Application No. 91/053
Grantee: **CSIRO Division of Plant Industry**
Certificate No. 183
Expiry Date: 9 May 2011

MANDARIN
Citrus hybrid

'Sunset' Application No. 91/058
Grantee: **CSIRO Division of Horticulture and Victorian Food and Agriculture**
Certificate No. 184
Expiry Date: 8 July 2011

Assignment of PVR

ROSE
Rosa

'Kooiana Daybreak' Certificate No.95
PVR has been assigned by Mr P Elphick and Dr P Gibson to **Sunrise Flowers International Limited** (SFIL), of Lot 104 via Kiln Rd, Nowergup, Western Australia 6032.

PVR Revoked

In accordance with Section 35 (1) of the *Plant Variety Rights Act*, the following varieties are no longer protected by Australian PVR:

FRENCH BEAN
Phaseolus vulgaris

'Gresham' Certificate No. 28
Grantee: **Booker Seeds Ltd of Lincolnshire, United Kingdom.**

CARNATION
Dianthus caryophyllus

Grantee: Bioprogress—SP—Secla of Plovdiv, Bulgaria.

'Chanden'	Certificate No. 16
'Metchta'	Certificate No. 18
'Rubinen'	Certificate No. 19
'Gorzdana'	Certificate No. 21
'Odile'	Certificate No. 22
'Zlatka'	Certificate No. 34
'Fantastic'	Certificate No. 35
'Prolet'	Certificate No. 36
'Pirin'	Certificate No. 45
'Neshka'	Certificate No. 46
'Zornitza'	Certificate No. 47
'Valya'	Certificate No. 48

Applications Accepted

(a) Descriptions Finalised

ROSE
Rosa

Comparative Growing Trials

All characteristics described for the following varieties are from comparative growing trials conducted at Narromine, NSW, in open garden beds. The varieties were propagated by bud grafting.

Variety: **'Sheer Bliss'** commercial synonym: 'Jactro'. See fig. 1 in colour section.
Application No. 92/001
Application Received: **6 January 1992**
Applicant: **Jackson and Perkins Co.**, of California, USA
Australian Agent: **Swane Bros. Pty Ltd**, of Dural, New South Wales

Description—see comparison tables and fig. 1.

'Sheer Bliss' is a white/light pink bedding rose. The plant is strong and upright and flowers are borne both singly and in small clusters. The bloom is pale cream to white, flushing on the inner petals to pink. The bud shape is ovate and the plant has a strong repeat flowering habit. Flowers have 26–50 petals. A small petal basal spot is present, stamens are purple, styles red and the stigma is below the level of the anthers. Sepal extensions are weak. The leaf colour is medium green. Thorns

are flat on the upper side and deep concave on the lower side. Seed vessel size is medium and pitcher in shape.

'Sheer Bliss' has smaller leaves than 'Pascali'. The shape of the terminal leaflet base is obtuse in 'Sheer Bliss' and rounded in 'Pristine' and 'Pascali'.

Origin

This variety arose from controlled pollination of 'Pristine' by an unnamed seedling. It was bred by Mr Jack Warriner of Somis, California, USA. A Plant Patent was applied for in the United States of America in 1987. 'Sheer Bliss' has been sold in the US since 1987.

Comparators

'Pristine' being the closest known variety and 'Pascali', an industry standard variety.

Table of Comparison of Rose Varieties

(* = comparators)

	'Sheer Bliss'	*'Pristine'	*'Pascali'
FLOWER DIAMETER (mm)			
mean	112.7	95.7	94.0
range	105–120	85–105	85–100
std deviation	4.1	7.4	5.3
PETAL COLOUR			
midzone outside	RHS 155A	RHS 155B	RHS 155D
midzone inside	RHS 155A	RHS 155B	RHS 155D
margin outside	RHS 54C–D	RHS 68C	RHS 155B
margin inside	RHS 54C–D	RHS 68C	RHS 155B
STAMEN—COLOUR OF FILAMENT	purple	purple	yellow/ green
STIGMA IN RELATION TO ANTHERS	below	below	above
SEPAL EXTENSIONS	weak	medium	medium
TERMINAL LEAFLET LENGTH (mm)			
mean	73.6	84.5	63.6
range	60–85	68–97	50–70
std. deviation	6.8	7.5	5.7
TERMINAL LEAFLET WIDTH (mm)			
mean	40.1	54.3	45.5
range	34–48	48–58	40–55
std. deviation	4.1	3.8	3.2
SHAPE OF LEAFLET BASE	obtuse	round	round
THORN SHAPE—UPPER SIDE	flat	deep concave	concave
THORN SHAPE—LOWER SIDE	deep concave	deep concave	concave

Variety: **'Aotearoa'** commercial synonym 'Macgenev'. See fig. 2 in colour section.

Application No. 92/002
Application Received: **6 January 1992**
Applicant: **Sam McGredy Roses International**, of Auckland, New Zealand
Australian Agent: **Swane Bros. Pty Ltd**, of Dural, New South Wales

Description—see comparison tables and fig. 2.

'Aotearoa' is a pink bedding rose. The large blooms are carried on a strong upright plant with dark green, glossy foliage. Flowers have more than 50 petals. A medium basal spot is present. The bud shape is ovate and the flower is flat in profile. Sepal extensions are medium. The plant is upright and bushy, and medium height. 'Aotearoa' has a strong fragrance. Leaflet bases are rounded and anthocyanin is present in young shoots.

Origin

This variety arose from controlled pollination of 'Harmonie' by 'Auckland Metro'. It was bred by Sam McGredy of Auckland, New Zealand. Plant Variety Rights were applied for in New Zealand in 1989 and 'Aotearoa' has been sold in New Zealand since 1989.

Comparators

'Touch of Class' being the closest known variety and 'Queen Elizabeth' an industry standard variety.

Table of Comparison of Rose Varieties

(* = comparators)

	'Aotearoa'	*'Touch of Class'	*'Queen Elizabeth'
FLOWER DIAMETER (mm)			
mean	98.0	97.0	92.5
range	90–105	90–105	85–100
std deviation	6.2	5.0	4.7
PETAL COLOUR			
midzone outside	RHS 38D	RHS 49C	RHS 55B
midzone inside	RHS 38D	RHS 50C	RHS 49B
margin outside	RHS 56A	RHS 49B	RHS 55B
margin inside	RHS 56A	RHS 48C	RHS 49B
NUMBER OF PETALS	> 50	>50	13–25
STAMEN—COLOUR OF FILAMENT	yellow	yellow/green	red
STIGMA IN RELATION TO ANTHERS	above	above	below
PETAL REFLEXING	medium	strong	absent
SEPAL EXTENSIONS	medium	medium	weak
TERMINAL LEAFLET LENGTH (mm)			
mean	70.7	75.4	73.5
range	65–80	62–94	62–85
std. deviation	6.1	6.8	6.0
TERMINAL LEAFLET WIDTH (mm)			
mean	37.3	54.7	46.9
range	32–43	47–70	40–55
std. deviation	3.5	5.1	4.5

TABLE OF COMPARISON OF ROSE VARIETIES—Continued

	'Aotearoa'	*'Touch of Class'	*'Queen Elizabeth'
SHAPE OF LEAFLET BASE			
	round	obtuse	round
THORN SHAPE—UPPER SIDE			
	flat	concave	concave
THORN SHAPE—LOWER SIDE			
	deep concave	concave	deep concave



Variety: **'White Simplicity'** commercial synonym 'Jacsnow'. See fig. 3 in colour section.
Application No. 92/003
Application Received: **6 January 1992**
Applicant: **Jackson and Perkins Co.**, of California, USA
Australian Agent: **Swane Bros. Pty Ltd**, of Dural, New South Wales

Description—see comparison tables and fig. 3.

'White Simplicity' is a white bedding rose with flowers carried on the bush in clusters. Petals display strong reflexing and undulation. Stamens are yellow/green, styles green and the stigma is at the same level as the anthers. There are few thorns. Seed vessels are small and pitcher shaped.

'White Simplicity' has thorns which are shorter than those of either 'Iceberg' or 'Pascali'. 'White Simplicity' and 'Iceberg' have prickles on the pedicel whereas 'Pascali' has none. 'White Simplicity' has darker leaves and longer sepals which have a higher intensity of anthocyanin colouration than 'Iceberg'.

Origin

This variety arose from controlled pollination of 'Sunflare' by 'Simplicity'. It was bred by Mr Jack Warriner of Somis, California, USA. A Plant Patent was applied for in the United States of America in 1989. 'White Simplicity' has been sold in the US since 1989.

Comparators

'Iceberg' and 'Pascali', both industry standard varieties.

Table of Comparison of Rose Varieties

(* = comparators)

	'White' Simplicity'	*'Iceberg'	*'Pascali'
FLOWER DIAMETER (mm)			
mean	72.6	72.5	94.0
range	65–80	65–80	85–100
std deviation	4.3	5.7	5.3
PETAL COLOUR			
midzone outside	RHS 155A	RHS 155D	RHS 155D
midzone inside	RHS 155A	RHS 155D	RHS 155D
margin outside	RHS 155B	RHS 155D	RHS 155B
margin inside	RHS 155B	RHS 155D	RHS 155B

TABLE OF COMPARISON OF ROSE VARIETIES—Continued

	'White' Simplicity'	*'Iceberg'	*'Pascali'
NUMBER OF PETALS			
	13–25	13–25	26–50
STAMEN—COLOUR OF FILAMENT			
	yellow/green	yellow/green	green
STIGMA IN RELATION TO ANTHERS			
	same level	below	below
PETAL REFLEXING			
	strong	strong	medium
SEPAL EXTENSIONS			
	weak	weak	medium
TERMINAL LEAFLET LENGTH (mm)			
mean	56.2	61.3	63.6
range	45–65	50–73	50–70
std. deviation	6.3	5.8	5.7
TERMINAL LEAFLET WIDTH (mm)			
mean	33.1	32.1	45.5
range	25–42	27–39	40–55
std. deviation		4.1	3.8 3.2
THORN SHAPE—UPPER SIDE			
	flat	concave	concave
THORN SHAPE—LOWER SIDE			
	deep concave	deep concave	concave
FLOWER PEDICEL THORNS			
	few	many	absent
THORN LENGTH—below first fully expanded leaf (mm)			
mean	6.3	7.6	9.0
range	5–9	6–9	7–10
std. deviation	1.1	0.8	0.8



Variety: **'Class Act'** commercial synonym 'Jacare'. See fig. 4 in colour section.
Application No. 92/004
Application Received: **6 January 1992**
Applicant: **Jackson and Perkins Co.**, of California, USA
Australian Agent: **Swane Bros. Pty Ltd**, of Dural, New South Wales

Description—see comparison tables and fig. 4.

'Class Act' is a white bedding rose with medium-sized flowers borne in clusters. The plant has a strong repeat flowering habit. Petals are reflexed with no undulation. Stamens are yellow, styles purple and the stigma is below the level of the anthers. Seed vessels are small and pitcher shaped.

'Class Act' has no thorns on the stem between the fifth and the tenth leaf from the tip and few prickles on the pedicel. In contrast, both 'Iceberg' and 'White Simplicity' have thorns present on the stem and 'Iceberg' has many prickles on the pedicel while 'White Simplicity', like 'Class Act', has few. 'Class Act' has medium sepal extensions while these are weak in 'Iceberg' and 'White Simplicity'.

Origin

This variety arose from controlled pollination of 'Sunflare' by an unnamed seedling. It was bred by Mr Jack Warriner of Somis, California, USA. A Plant Patent was applied for in the United States of America in 1989. 'Class Act' has been sold in the US since 1989.

Comparators

'White Simplicity', the closest known variety and 'Iceberg', an industry standard variety.

Table of Comparison of Rose Varieties

(* = comparators)

	'Class Act'	*'Iceberg'	*'White Simplicity'
FLOWER DIAMETER (mm)			
mean	87.0	72.5	72.6
range	80–90	65–80	65–80
std deviation	4.4	5.7	4.3
PETAL COLOUR			
midzone outside	RHS 155B	RHS 155D	RHS 155A
midzone inside	RHS 155B	RHS 155D	RHS 155A
margin outside	RHS 155B	RHS 155D	RHS 155B
margin inside	RHS 155B	RHS 155D	RHS 155B
NUMBER OF PETALS	13–25	13–25	13–25
STAMEN—COLOUR OF FILAMENT	yellow	yellow/ green	yellow/ green
STIGMA IN RELATION TO ANTHERS	below	below	same level
PETAL REFLEXING	medium	strong	strong
SEPAL EXTENSIONS	medium	weak	weak
TERMINAL LEAFLET LENGTH (mm)			
mean	58.0	61.3	56.3
range	50–70	50–73	45–65
std. deviation	6.1	5.8	6.3
TERMINAL LEAFLET WIDTH (mm)			
mean	35.4	32.1	33.1
range	25–45	27–39	24–42
std. deviation	4.6	3.8	4.1
THORN SHAPE—UPPER SIDE	absent	concave	flat
THORN SHAPE—LOWER SIDE	absent	deep concave	deep concave
FLOWER PEDICEL THORNS	few	many	few

Variety: **'Brigadoon'** commercial synonym: 'Jacpal'. See fig. 5 in colour section.
Application No. 92/005
Application Received: **6 January 1992**
Applicant: **Jackson and Perkins Co.,** of California, USA
Australian Agent: **Swane Bros. Pty Ltd**, of Dural, New South Wales

Description—see comparison tables and fig. 5

'Brigadoon' is a pink blend bedding rose with a strong repeat flowering habit. Leaves are dark green and glossy. Flowers are double. Petals are strongly reflexed. Stamens are yellow, styles red and the stigma is above the level of the anthers. The seed vessel is small and pitcher shaped.

Origin

This variety arose from controlled pollination of 'Pristine' by an unnamed seedling. It was bred by Mr Jack Warriner of Somis, California, USA. A Plant Patent was applied for in the United States of America in 1991. 'Brigadoon' has been sold in the US since 1991.

Comparators

'Pristine' being the closest known variety and 'Queen Elizabeth' being an industry standard variety.

Table of Comparison of Rose Varieties

(* = comparators)

	'Brigadoon'	*'Queen Elizabeth'	*'Pristine'
FLOWER DIAMETER (mm)			
mean	99.8	92.5	95.7
range	90–115	85–100	85–105
std deviation	6.6	4.7	7.4
PETAL COLOUR			
midzone outside	RHS 48D	RHS 55B	RHS 155B
midzone inside	RHS 48D	RHS 49B	RHS 155B
margin outside	RHS 51B	RHS 55B	RHS 68C
margin inside	RHS 50A–52B	RHS 49B	RHS 68C
NUMBER OF PETALS	26–50	26–50	26–50
STAMEN—COLOUR OF FILAMENT	yellow	red	red
STIGMA IN RELATION TO ANTHERS	above	below	above
PETAL REFLEXING	strong	strong	strong
SEPAL EXTENSIONS	medium	weak	medium
TERMINAL LEAFLET LENGTH (mm)			
mean	76.7	73.5	84.5
range	60–100	62–85	68–97
std. deviation	9.7	6.0	7.2
TERMINAL LEAFLET WIDTH (mm)			
mean	46.1	46.9	54.3
range	38–59	40–55	48–58
std. deviation	5.7	4.5	3.8

TABLE OF COMPARISON OF ROSE VARIETIES—Continued

	'Brigadoon'	*'Queen Elizabeth'	*'Pristine'
THORN SHAPE—UPPER SIDE			
	flat	concave	deep concave
THORN SHAPE—LOWER SIDE			
	deep concave	deep concave	deep concave

Rose descriptions prepared by Swanes Roses and PVRO.

HYDRANGEA

Hydrangea macrophylla

Comparative Growing Trials

All characteristics and comparisons are from comparative growing trials conducted at Emerald in Victoria between March 1990 and March 1992. Growing conditions were the same as would be used in commercial production. One hundred plants of the variety were grown in 200 mm containers for two seasons in a typical pine bark and sand based medium enriched with time release fertilizer. Plants were raised outside and spaced to allow full development. Chemical treatment was used for fungal and pest control only. Measurements and observations are from 10 specimens selected at random from the 100 plants of each variety.

☐

Variety: **'Kirsten'** (Breeder's Reference: HOR 4). See figs. 6 and 8 in colour section.
Application No. 92/052
Application Received: **15 April 1992**
Applicant: **L. Kientzler, Kientzler KG**, of Gensingen, Germany
Australian Agent: **RW Rother of Outeniqua Nursery**, Emerald, Victoria

Description—see comparison tables and figs. 6 and 8.

'Kirsten' is a hybrid *Hydrangea* with low, bushy growth and light green, oval leaves with acuminate apices. Venation of the leaf is reticulate. The inflorescence is umbrella shaped and flowers with a small calyx are inconspicuous. Sepals are blue/red and average 4–5. Overlapping of sepals is sometimes present and there is no incision of the sepals.

Origin

The breeder was L. Kientzler of Kientzler KG, Gensingen, Germany. 'Kirsten' was selected from the seedling progeny of 'Alpengluhen' as seed parent and 'No. 24' as pollen parent. PVR was applied for in Germany in October 1985 and subsequently granted. 'Kirsten' was first sold in Germany in July 1987.

Comparator

'LK 49', also a Kientzler hybrid, is the closest existing variety in flower colour and size.

☐

Variety: **'LK49'** (Breeder's Reference: 'HOR 5'). See figs. 7 and 8 in colour section.
Application No. 92/078
Application Received: **26 May 1992**
Applicant: **L. Kientzler, Kientzler KG**, of Gensingen, Germany
Australian Agent: **RW Rother of Outeniqua Nursery**, of Emerald, Victoria

Description—see comparison tables and figs. 7 and 8.

'LK49' is a hybrid *Hydrangea* with medium bushy growth and broad, light green, elliptical leaves. Inflorescences are umbrella shaped and flowers with a small calyx are inconspicuous. Sepals are red/blue, corresponding to RHS 59B–60B. The average number of sepals is 3–4 and there is no incision of the sepals.

Origin

The breeder was L. Kientzler of Kientzler KG, Gensingen, Germany. 'LK49' was selected from the seedling progeny of 'Alpengluhen' and 'Merkur'. 'LK49' was first sold in Germany in July 1987.

Comparator

'Kirsten', also a Kientzler hybrid, is the closest variety in flower colour and size.

Descriptions prepared by Roy Rother and PVRO.

Table of Comparison of *Hydrangea* Varieties

(* = comparators)

	*'LK49'	*'Kirsten'
PLANT HEIGHT	medium	low
PLANT GROWTH HABIT	bushy	bushy
LEAF BLADE: MAIN COLOUR	green	green
LEAF BLADE: INTENSITY OF MAIN COLOUR	light	light
LEAF BLADE: GLOSSINESS OF UPPER SURFACE	present	present
LEAF BLADE: SHAPE	elliptical	oval
LEAF BLADE: SHAPE OF APEX	acute	acuminate
LEAF BLADE: SHAPE OF BASE	rounded	broad v-shape, sometimes round
INFLORESCENCE TYPE	umbrella shaped	umbrella shaped
INFLORESCENCE DIAMETER	medium	medium



Fig. 1. 'Pascali' (left), 'Sheer Bliss' (centre) and 'Pristine'.
(Photograph supplied by applicant)



Fig. 2. 'Touch of Class' (left), 'Aotearoa' (centre) and 'Queen Elizabeth'.
(Photograph supplied by applicant)



Fig. 3. 'Pascali' (left), 'White Simplicity' (centre) and 'Iceberg'.
(Photograph supplied by applicant)



Fig. 4. 'White Simplicity' (left), 'Class Act' (centre) and 'Iceberg'.
(Photograph supplied by applicant)



Fig. 5. 'Pristine' (left), 'Brigadoon' (centre) and 'Queen Elizabeth'.
(Photograph supplied by applicant)



Fig. 6. 'Kirsten'. (Photograph supplied by applicant)



Fig. 7. 'LK–49'. (Photograph supplied by applicant)

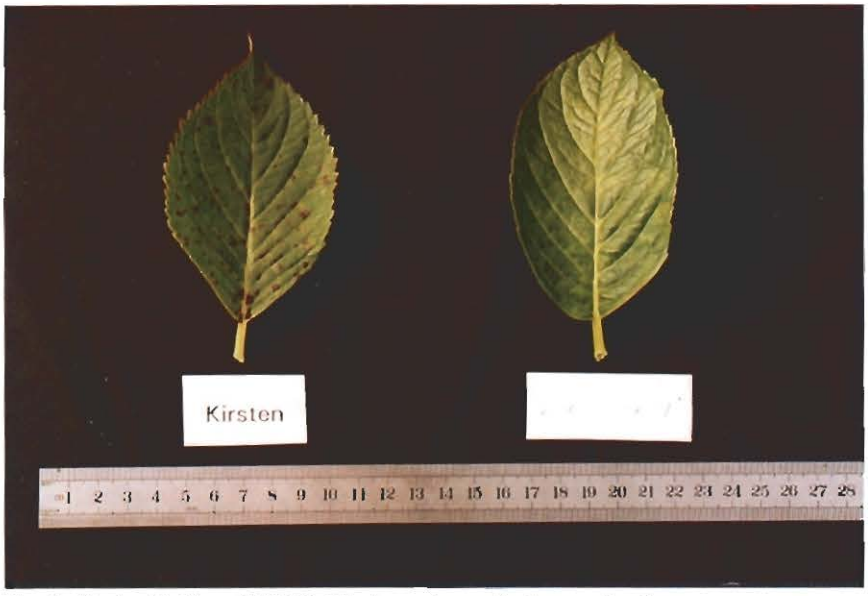


Fig. 8. 'Kirsten' (left) and 'LK-49'. (Photograph supplied by applicant)



Fig. 9. 'Ulyssis'. (Photograph supplied by applicant)

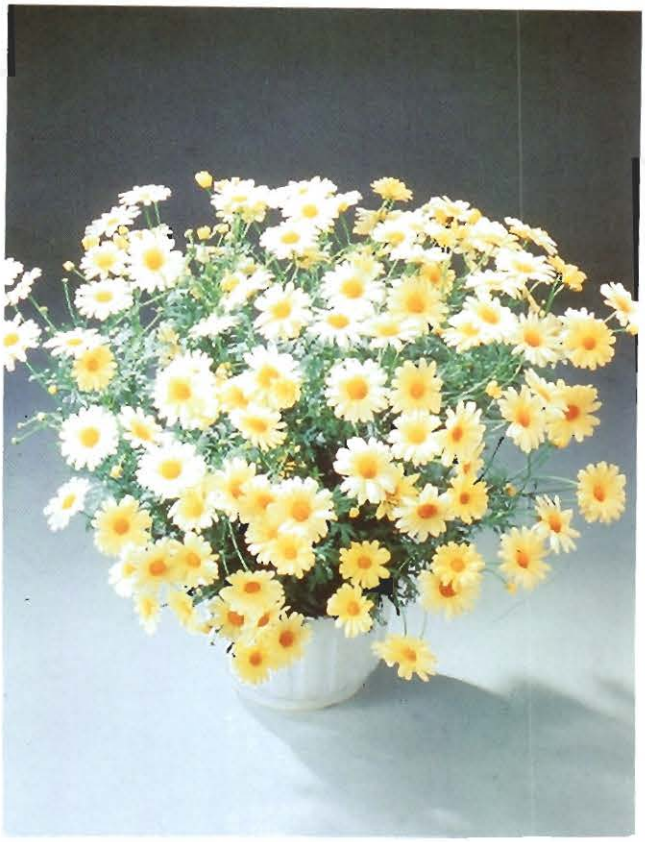


Fig. 10. 'Cream Star'. (Photograph supplied by applicant)



Fig. 11. Seed Pods and seeds of 'Norwin', 'Barwon', 'Dooen' and 'PI 13768'. (Photograph supplied by applicant)

TABLE OF COMPARISON OF *HYDRANGEA* VARIETIES—Continued

	*'LK49'	*'Kirsten'
INFLORESCENCE: FLOWERS WITH SMALL CALYX	inconspicuous	inconspicuous
INFLORESCENCE: COLOUR	red RHS 59B–60B	blue/red RHS 63A, fading
LARGE CALYX: NUMBER OF SEPALS	3 & 4	4 & 5, sometimes 3
LARGE CALYX: DEGREE OF OVERLAPPING OF SEPALS	sometimes present	sometimes present
LARGE CALYX: INCISIONS ON MARGIN OF SEPALS	absent on all sepals	absent on all sepals

CHRYSANTHEMUM

Chrysanthemum frutescens

Comparative Growing Trials

All characteristics and comparisons in the description and table are from comparative growing trials conducted at Emerald in Victoria between September 1991 and April 1992. Growing conditions were the same as would be used in commercial production. The plants of the hybrid variety 'Ulyssis' were grown in 200 mm containers in typical pine bark based potting medium enriched with time release fertiliser. 'Cream Star' was grown in 150 mm containers in the same potting medium. The new and existing varieties were grown together in full sun. Measurements are from 10 speciments selected at random 6 months after repotting.

Variety: **'Ulyssis'** commercial synonym: 'Butterfly'. See fig. 9 in colour section.
Application No. 92/055
Application Received: **8 May 1992**
Applicant: **Markus Schmulling**, of Billerbeck, Germany
Australian Agent: **RW Rother of Outeniqua Nursery**, Emerald, Victoria

Description—see comparison tables and fig. 9.

'Ulyssis' is a compact, small to medium sized plant with light green leaves and a profusion of yellow flowers. The influorescences are larger than those of 'California Gold' and are distinct from the cream-coloured flowers of 'Cream Star'.

'Ulyssis' has medium leaf serration, while this is fine in 'California Gold'. The long axes of ray florets are straight in 'Ulyssis' and reflexing in 'California Gold'. 'Ulyssis' has shorter peduncles than either of the two comparative varieties. The faded flowers of 'Ulyssis' are lighter coloured than are those of 'California Gold'. Disc colour before anther dehiscence corresponds to RHS 14A in 'Ulyssis' and 'Cream Star' and to RHS 17A in 'California Gold'.

Origin

The breeder was Markus Schmulling of Schmulling Nurseries in Billerbeck, Germany. 'Ulyssis' was selected as a sport of 'Schone von Nizza' and propagated vegetatively for several generations to establish stability.

Comparator

'California Gold', a marguerite daisy introduced from Europe by Outeniqua Nurseries is used for comparison, being the closest in flower colour and size and commonly available in Australia.

Variety: **'Cream Star'** commercial synonym: 'Cream Butterfly'. See fig. 10 in colour section.
Application No. 92/056
Application Received: **8 May 1992**
Applicant: **Markus Schmulling**, of Billerbeck, Germany
Australian Agent: **RW Rother of Outeniqua Nursery**, Emerald, Victoria

Description—see comparison tables and fig. 10.

'Cream Star' is a compact small to medium size plant with light green leaves and a profusion of cream to white flowers.

'Cream Star' differs in its flower colours from 'California Gold' and 'Ulyssis', both of which are yellow-flowered. The long axes of ray florets are straight in contrast to those of 'California Gold' which are reflexing. 'Cream Star' has longer peduncles than 'Ulyssis'. 'Cream Star has medium leaf serrations while these are fine in 'California Gold'.

Origin

The breeder was Markus Schmulling of Schmulling Nurseries in Billerbeck, Germany. 'Cream Star' was selected as a sport of 'Butterfly' and propagated vegetatively for several generations to establish stability.

Comparators

'Ulyssis', a Schmulling cultivar and the parent plant, and 'California Gold', a hybrid marguerite introduced to Australia by R Rother of Outeniqua Nurseries, Emerald. The latter is commonly available in Australia.

Descriptions prepared by Roy Rother and PVRO.

Table of Comparison of *Chrysanthemum* Varieties

(* = comparators)

	'Ulyssis'	*'Cream Star'	*'Californian Gold'
PLANT HEIGHT	medium	medium	medium
SHAPE OF LEAF BASE	acute	acute	acute
LEAF COLOUR	green	green	green
LEAF SERRATION	medium	medium	fine

TABLE OF COMPARISON OF *CHRYSANTHEMUM* VARIETIES—Continued

	'Ulyssis'	*'Cream Star'	*'Californian Gold'
RAY FLORETS—long axis	straight	straight	reflexing
RAY FLORETS—tip shape	dentate	dentate	dentate
RAY FLORETS—COLOUR OF UPPER SURFACE	RHS 5A	RHS 4D	RHS 5A/B
RAY FLORETS—COLOUR OF UNDER SURFACE	RHS 6D	RHS 4D	RHS 6D
DISC COLOUR BEFORE ANTHER DEHISCENCE	RHS 14A	RHS 14A	RHS 17A
FADED FLOWERS	RHS 5D	RHS 4D	RHS 5C

CHICKPEA

Cicer arietinum

Variety: **'Norwin'**. See fig. 11 in colour section.
Application No. 92/103
Application Received: **2 July 1992**
Applicant: **New South Wales Agriculture and the Queensland Department of Primary Industries**, of Orange, NSW and Brisbane, Queensland respectively.
Australian Agent: **Pacific Seeds Pty. Ltd.** of Toowoomba, Queensland.

Description—see comparison tables and fig. 11.

'Norwin' is a mid-season, *Phytophthora*—resistant variety. It is a typical desi type, with light brown seeds which are slightly smaller than those of 'Barwon', 'Dooen', and 'PI 13769'. 'Norwin' has pink flowers, but differs from all other Australian desi varieties in lacking anthocyanin pigmentation in the seedling epicotyl, floral peduncle and pod wall. The calyx width of 'Norwin' is less than that of 'Barwon, 'Dooen' and 'PI 13768', and its pods are shorter and thinner.

Origin

'Norwin' was jointly developed by EJ Knights of NSW Agriculture and RB Brinsmead of the Queensland Department of Primary Industries. It was derived from a single cross between the introductions CPI 74256 and CPI 56564 using a modified pedigree method. 'Norwin' is an F4 progeny line; foundation seed is a composite of 40 F7 single plant progenies.

Comparators

'Barwon' and 'Dooen' being Australian varieties with similar growth and seed characteristics, and PI 13768 being an introduction also having similar growth and seed characteristics, and soon to be released in southern Australia.

Comparative Growing Trials

All characteristics described are for a comparative growing trial conducted in 1991 at the Agricultural Research Centre, Tamworth, NSW. The trial was sown on 6 June. Plot size was 8.0m x 7 rows, with rows spaced at 20cm; there were 6 replicates. Mean plant spacing within rows was 11cm. Measurements were made on 17 plants from each plot; 8 plants each were sampled at equal spacings from the 2nd and 6th rows, and 1 from the middle of the 4th row.

Agronomy

'Norwin' is suitable for growing in the Darling Downs region of Queensland.

Description prepared by Ted Knights of NSW Agriculture, Tamworth.

Table of Comparison of Chickpea Varieties

(* = comparators)

	'Norwin'	*'Barwon'	*'Dooen'	*'PI 13768'
GROWTH HABIT AT FLOWERING (Scale: 1 = upright, 9 = prostrate)	4	5	5	3
NATURAL HEIGHT AT FLOWERING (cm)				
mean	46.0	48.5	50.1	44.1
range	37-53	40-58	39-60	36-56
std. dev	3.53	3.68	4.03	3.40
SEEDLING EPICOTYL ANTHOCYANIN COLOURATION	absent	present	present	present
LEAF LENGTH (mm)				
mean	54.0	62.0	58.7	50.2
range	43-66	49-74	41-73	36-62
std. dev	3.89	4.63	5.71	5.11
LEAF WIDTH (mm)				
mean	23.0	24.1	25.3	24.3
range	18-28	20-29	18-31	18-32
std. dev	2.03	1.79	2.46	2.57

TABLE OF COMPARISON OF CHICK PEA VARIETIES—Continued

	'Norwin'	*'Barwon'	*'Dooen'	*'PI 13768'
LEAFLET NUMBER				
mean	16.3	16.4	15.9	14.9
range	15-18	15-19	13-18	12-17
std. dev	0.59	0.67	0.66	0.93
PEDUNCLE ANTHOCYANIN	absent	present	present	present
POD WALL ANTHOCYANIN	absent	present	present	present
CALYX DIAMETER (mm)				
mean	11.5	13.1	16.4	14.1
range	9-14	10-17	12-26	11-16
std. dev	0.94	1.33	1.77	1.19
POD LENGTH (mm)				
mean	18.4	20.0	20.4	20.8
range	15-21	15-25	16-25	16-25
std. dev	1.23	1.91	2.02	1.78
POD BREADTH (mm)				
mean	7.7	8.5	8.3	9.2
range	6-9	7-10	7-10	7-11
std. dev	0.61	0.71	0.69	0.79
1000 SEED WEIGHT (g)				
mean	164.0	183.0	181.0	196.5

(b) Descriptions to be finalised

Descriptions for the Journal are being finalised for the following applications. The six month period for comment or formal objection will not begin until the full descriptions are finalised and published in the Journal. These varieties have provisional protection under Section 22 of the *Plant Variety Rights Act 1987*.

WAX FLOWER
Chamelaucium uncinatum

Applicant: **Australian Wax Farms**, of West Perth, Western Australia
'Muchea Mauve'
Application No. 92/013
Accepted: 25 May 1992

'Jenny Jane'
Application No. 92/014
Accepted: 25 May 1992

'Jubilee'
Application No. 92/015
Accepted: 25 May 1992

'Kismet'
Application No. 92/016
Accepted: 25 May 1992

ROSE
Rosa

Appplicant: **Eric Welsh Roses** of Erina, New South Wales
'Woman's Day' commercial synonym 'Welira'
Application No. 92/018
Accepted: 1 July 1992

HYDRANGEA
Hydrangea macrophylla

Applicant: **Kientzler KG**, of Gensingen, Germany
Agent in Australia: **RW Rother**, of Outeniqua Nursery, Emerald, Victoria

'Messalina' commercial synonym 'HOR 4'
Application No. 92/053
Accepted: 4 June 1992

'Rotenfels' commercial synonym 'HOR 5'
Application No. 92/054
Accepted: 4 June 1992

LIMONIUM
Limonium

Applicant: **Dai-ichi Seed Co. Ltd**, of Tokyo, Japan
Agent in Australia: **Burbank Biotechnology Pty Ltd**, of Wyong, New South Wales
'Daicean' commercial synonym 'Ocean Blue'
Application No. 92/057
Accepted: 7 May 1992

'Oceanic Blue' commercial synonym in Holland 'Misty Blue'
Application No. 92/058
Accepted: 7 May 1992

'Oceanic White' commercial synonym 'Misty White'
Application No. 92/059
Accepted: 7 May 1992

ROSE
Rosa

Applicant: **David Austin Roses**, of Wolverhampton, England
Agent in Australia: **The Perfumed Garden**, of

Moorooduc, Victoria
'Ausmit'
Application No. 92/061
Accepted: 7 May 1992

DESMANTHUS
Desmanthus virgatus

Applicant: **The State of Queensland through its Department of Primary Industries**, of Brisbane, Queensland
'Marc'
Application No. 92/062
Accepted: 19 May 1992

'Bayamo'
Application No. 92/063
Accepted: 19 May 1992

'Uman'
Application No. 92/064
Accepted: 19 May 1992

ROSE
Rosa

Applicant: **Werner Noack**, of Gutersloh, Germany
Agent in Australia: **Tesselaar Nominees**, of Silvan, Victoria
'White Flower Carpet' commercial synonym 'Noaschnee'
Application No. 92/065
Accepted: 19 May 1992

PLUMCOT
Prunus hybrid

Applicant: **Messrs NG & LG Bradford**, of California, United States of America
Agent in Australia: **FB Rice and Co.**, of Balmain, New South Wales
'Royal Velvet Plumcot'
Application No. 92/066
Accepted: 18 May 1992

PEA
Pisum sativum

Applicant: **Cambridge Plant Breeders Ltd**, of Thriplow near Royston, England
Agent in Australia: **Heritage Seeds Pty Ltd**, of Bowna, New South Wales
'Jupiter'
Application No. 92/067
Accepted: 20 May 1992

MANDARIN
Citrus reticulata

Applicant: **Mr W Parr** of Torbanlea Queensland
'Success'
Application No. 92/068
Accepted: 26 May 1992

COTTON
Gossypium hirsutum

Applicant: **Delta and Pine Land Company**, of Mississippi, United States of America
Australian Agent. **Deltapine Australia**, of Goondiwindi, Queensland
'DP 891' commercial synonyms: 'DPX 891' and 'DP 5891'
Application No. 92/069
Accepted: 25 May 1992

ZOYSIA GRASS
Zoysia japonica

Applicant: **The Regents of the University of California**, USA
Agent in Australia: **Agricultural Licensing Australia Pty Ltd**, of North Parramatta, New South Wales
'El Toro'
Application No. 92/070
Accepted: 26 May 1992

LUCERNE
Medicago sativa

Applicant: **Minister of Agriculture**, of Adelaide South Australia
'Caliph' commercial synonym 'Z-602'
Application No. 92/071
Accepted: 21 May 1992

LEPTOSPERMUM
Leptospermum hybrid

Applicant: **Mr P Ollerenshaw** of Bungendore, New South Wales
'Aphrodite'
Application No. 92/072
Accepted: 25 May 1992

SCABIOSA
Scabiosa columbaria

Applicant: **Pride of Place Plants Ltd**, of Worcestershire, England
Australian Agent: **John Stanley Associates** of Katamunda, Western Australia
'Pink Mist'
Application No. 92/073
Accepted: 25 May 1992

'Butterfly Blue' commercial synonym 'Butterfly Blue Beauty'
Application No. 92/074
Accepted: 25 May 1992

POTATO
Solanum tuberosum

Applicant: **Caithness Potato Breeders Ltd**, of London, United Kingdom
Agent in Australia: **LS & JL Eldridge**, of Cuthbert, Western Australia
'Nadine'
Application No. 92/075
Accepted: 28 May 1992

RYEGRASS
Lolium perenne

Applicant: **New Zealand Agriseeds Ltd**, of Christchurch, New Zealand

Agent in Australia: **Heritage Seeds Pty Ltd**, of Bayswater, Victoria
'Vedette' commercial synonym 'LP11'
Application No. 92/076
Accepted: 28 May 1992

EUPHORBIA
Euphorbia

Applicant: **Messrs K & G Stephens** of Canningvale, Western Australia
'Milkmaid'
Application No. 92/077
Accepted: 26 May 1992

APPLE
Malus domestica

Applicant: **The Department of Primary Industries, for and behalfof the Crown in right of the State of Queensland**, of Brisbane, Queensland,
'GB63-43'
Application No. 92/079
Accepted: 29 June 1992

LYSIMACHIA
Lysimachia congestiflora

Applicant: **Mr Roy Rother**, of Outeniqua Nursery, Emerald, Victoria
'Sunbird'
Application No. 92/080
Accepted: 12 June 1992

PLUMBAGO
Plumbago auriculata

Applicant: **Monrovia Nursery**, of California, USA
Agent in Australia: **Ian Collins**, of Colourwise Nursery, Glenorie, NSW
'Monott' commercial synonym: 'Royal Cape'
Application No. 92/081
Accepted: 15 June 1992

ROSE
Rosa

Applicant: **Universal Plants**, of Le Cannet-Des-Maures, France
Agent in Australia:**TVR Propagators P/L** of Rosevears, Tasmania
'Keizoubo'
Application No. 92/082
Accepted: 29 June 1992

Applicant: **SNC Meilland et Cie** of Antibes, France
Agent in Australia:**TVR Propagators P/L** of Rosevears, Tasmania
'Meiperol' commercial synonym 'Fidelio '92'
Application No. 92/083
Accepted: 29 June 1992

STRAWBERRY
Fragaria xananassa

Applicant: **Queensland Department of Primary Industries for and on behalf of the Crown in right of the State of Queensland**, of Brisbane, Queensland
'Redlands Hope' commercial synonym '192/90'
Application No. 92/084
Accepted: 11 June 1992

'Redlands Surprise' commercial synonym '116/90'
Application No. 92/085
Accepted: 11 June 1992

'Redlands Pinnacle' commercial synonym '28/90'
Application No. 92/086
Accepted: 11 June 1992

'Redlands Rose' commercial synonym '106/90'
Application No. 92/087
Accepted: 11 June 1992

'Redlands Joy' commercial synonym '171/90'
Application No. 92/088
Accepted: 11 June 1992

'Redlands Delight' commercial synonym '154/90'
Application No. 92/089
Accepted: 11 June 1992

EUPHORBIA
Euphorbia pulcherrima

Applicant: **Paul Ecke Ranch**, of California, USA
Agent in Australia: **AJ Newport and Son Pty Ltd**, of Winmalee, NSW
'Lemon Drop' commercial synonym: 'Eckespoint Lemon Drop'
Application No. 92/090
Accepted: 16 June 1992

'Pink Peppermint' commercial synonym: 'Eckespoint Pink Peppermint'
Application No. 92/091
Accepted: 16 June 1992

ZYGOCACTUS
Schlumbergera truncata

Applicant: **BL Cobia Inc** of Florida, USA
Agent in Australia: **Spruson and Ferguson**, of Sydney, New South Wales
'Sanibel'
Application No. 92/092
Accepted: 29 June 1992

'Windsor'
Application No. 92/093
Accepted: 29 June 1992

CANDYTUFT
Iberis sempervirens

Applicant: **RW Rother** of Emerald, Victoria
'White Cloud'
Application No. 92/094
Accepted: 8 July 1992

SCAEVOLA
Scaevola aemula

Applicant: **InnovaPlant GMBH** of Gensingen, Germany
Agent in Australia: **RW Rother** of Emerald, Victoria
'Petite'
Application No. 92/095
Accepted: 8 July 1992

ANNUAL RYEGRASS
Lolium rigidum

Applicant: **Minister of Agriculture** of Adelaide, South Australia
'Guard' commercial synonym 'line 236'
Application No. 92/096
Accepted: 26 June 1992

LUCERNE
Medicago sativa

Applicant: **Minister of Agriculture** of Adelaide, South Australia
'Sceptre' commercial synonym 'L96'
Application No. 92/097
Accepted: 26 June 1992

LOTUS
Lotus corniculatus

Applicant: **DSIR Grasslands** of Palmerston North, New Zealand
Agent in Australia: **AE Stratton** of Rutherglen, Victoria
'Grasslands Goldie'
Application No. 92/098
Accepted: 7 July 1992

PERENNIAL RYEGRASS
Lolium perenne

Applicant: **Hodder and Tolley Research Division** of Christchurch, New Zealand
Agent in Australia: **Pacific Seeds Pty. Ltd.** of Toowoomba, Queensland
'Banks' commercial synonym 'C4' and 'C234'
Application No. 92/099
Accepted: 7 July 1992

NECTARINE
Prunus persica var. *nucipersica*

Applicant: **Zaiger Genetics** of Modesto, California, United States of America
Agent in Australia: **Fleming's Nurseries & Associates Pty. Ltd.** of Monbulk, Victoria
'Arctic Rose' commercial synonym '161GD123'
Application No. 92/101
Accepted: 8 July 1992

PEACH
Prunus persica var. *persica*

Applicant: **Zaiger Genetics** of Modesto, California, United States of America
Agent in Australia: **Fleming's Nurseries & Associates Pty. Ltd.** of Monbulk, Victoria
'Rich Lady' commercial synonym '8GC128'
Application No. 92/102
Accepted: 8 July 1992

ROSE
Rosa

Applicant: **SNC Meilland et Cie** of Antibes, France
Agent in Australia: **Ross Roses**, of Willunga, South Australia
'Pretty Polly' commercial synonym 'Meitonje'
Application No. 92/105
Accepted: 28 July 1992

'Carefree Wonder' commercial synonym 'Meipitac'
Application No. 92/106
Accepted: 28 July 1992

'City of Adelaide' commercial synonym 'Meichouiju'
Application No. 92/107
Accepted: 28 July 1992

HARDENBERGIA
Hardenbergia violacea

Applicant: **P & D Shiells** of Wonga Park, Victoria
'Pink Fizz'
Application No. 92/104
Accepted: 31 July 1992

FICUS
Ficus benjamina

Applicant: **Deroose Reginald**, of Evergem, Belgium
Agent in Australia: **Burbank Biotechnology Pty Ltd**, of Tuggerah, New South Wales
'Reginald'
Application No. 92/108
Accepted:6 August 1992

Objections

Formal objections (S20 of the PVR Act) to any of the above applications can be lodged by a person who:

(a) considers their commercial interests would be affected by a grant of PVR to the applicant; **and**

(b) considers that the provisions of S26 cannot be met.

A fee of $200 is payable at the time of lodging a formal objection and $70/hour will be charged if the examination of the objection by the PVR Office takes more than 2 hours.

A person submitting a formal objection must provide supporting evidence to substantiate the claim. A copy of the submission will also be sent to the applicant and the latter will be asked to show why the objection should not be upheld.

All formal objections and comments relating to the above applications must be lodged with the Registrar by close of business on **31 March 1993**.

Applications Varied

The following applications have been varied under subsection 19(1) of the *Plant Variety Rights Act 1987*.

POTATO
Solanum tuberosum

Application No. 91/029 **'Panda'**
Change of Australian Agent from Vecon Horticulture to **CCA Snack Foods Pty Ltd** of Rydalmere, New South Wales

ALDER
Alnus jorullensis
Application No. 91/097 (Public Notice in PVJ Vol 4 No 4)
Change of variety name from 'Weeping Willy' to **'Royal Cascade'**
Change of applicants from WL Robinson & WR Bailey to **Javmain Pty Ltd and Perruna Pty Ltd**, of Baxter, Victoria

Corrigenda

CUPRESSOCYPARIS
XCupressocyparis

'Peter Nitschke'

Vol. 5 No. 2, June 1992, p 18, figure 9
The photograph of 'Peter Nitschke' with the comparative variety 'Castwellan Gold', was incorrectly labelled. 'Peter Nitschke' is on the left of the photograph.

STENANTHEMUM
Stenanthemum scortechinii

Vol.5 No. 2 of June 1992, p.35.
The botanical name of 'White Mischief' was incorrectly recorded. The correct name is *Stenanthemum scortechinii.*

IMPATIENS
Impatiens hawkeri

Vol. 5 No. 2 of June 1992, p.28.
'Papete'. The comparative table is incorrectly labelled. Replace 'Samoa' with 'Papete' and 'Jasius' with 'Dunya'.

APPENDIX 1
Fees

Basic PVR Fees	**$**
Application	400
Examination of application	1400
Certificate of PVR	250
Total Basic Fees	2050
Annual Renewal Fee	250
Other Fees	
Variation to application	70
Copy of application	70
Lodging an objection	200
Copy of objection	70
Compulsory license	140
Transfer of rights	140
Issue of publications (first 10 pages, then 50c/page)	8
Back issues of PVJ	8
Other work relevant to PVR (per hour)	70

Payment of Fees

All cheques for fees should be made payable and sent to:

Plant Variety Rights Office
DPIE
GPO Box 858
Canberra, ACT 2601

The **application fee** ($400) must accompany the application at the time of lodgement.

The *full* **examination fee** ($1400) must be paid before the expiry of the 12th month from the date of acceptance of the application. The PVR Office will routinely invoice the applicant or their agent for the examination fee with the letter of acceptance. This will notify the applicant of their legal liability for the examination fee from the date of acceptance. At the end of the 11th month after acceptance of the application, should the examination fee not have been paid, a final invoice (reminder) will be despatched to the applicant.

Consequences of not paying fees when due

Application fee

Should an application not be accompanied by the prescribed application fee the application will be deemed to be 'non-valid' and neither assigned an application number nor examined for acceptance pending the payment of the fee.

Examination fee

Non-payment of the examination fee before the expiry of 12 months from the date of acceptance of an application will automatically result at the end of 12 months in a refusal of the application. The consequences of refusal are the same as for applications deemed to be inactive (see 'inactive applications' below).

Field examinations and final examinations falling within the first 12 months will not be undertaken without prior payment of the examination fee.

Consideration of a request for an extension of the period of provisional protection from the initial 12 month period requires the prior payment of the examination fee.

Certificate fee

Following the successful completion of the examination, including the public notice period, the applicant will be required and invoiced to pay the certification fee. Payment of the certification fee is a prerequisite to granting PVR and issuing the official certificate by the PVR Office. Failure to pay the fee may result in a refusal to grant PVR.

Renewal fee

Should an annual renewal fee not be paid within 30 days after the due date the grant of PVR will be revoked under para. 35 (1) (b) of the Act. To assist grantees the PVR Office will invoice grantees or their Australian agents for renewal fees.

Inactive applications

An application will be deemed inactive if, after 24 months of provisional protection (or 12 months in the case of non-payment of the examination fee) the PVR Office has not received a completed application or has not been advised to proceed with the examination or an extension of provisional protection has not been requested or not granted or a certificate fee has not

been paid. Inactive applications will be examined and, should they not fully comply with Section 26 of the *PVR Act 1987*, they will be refused. As a result provisional protection will lapse, priority claims on that variety will be lost and should the variety have been sold, it will be ineligible for plant variety rights on reapplication. *Continued use of labels or any other means to falsely imply that a variety is protected after the application has been refused is an offence under Section 52 (2) (b) of the Act.*

APPENDIX 2

Plant Variety Rights Advisory Committee (PVRAC)

(Members of the PVRAC were appointed in accordance with S45 of the *Plant Variety Rights Act 1987*).

Dr Robert Boden
Consultant in Conservation & Natural Resource Management
36 Carstensz St
GRIFFITH ACT 2603
Representative with appropriate qualifications and experience.

Dr Kevin Boyce
Principal Officer, Seed Services
Plant Services Division
South Australian Department of Agriculture
GPO Box 1671
ADELAIDE SA 5001
Representative of breeders.

Mr Rodney Field
WMR Box 758
ESPERANCE WA 6450
Representative of producers.

Dr David Godden
Department of Agricultural Economics
University of Sydney
NSW 2006
Representative of consumers.

Dr Brian Hare
Director of Research
Pacific Seeds
PO Box 337
TOOWOOMBA QLD 4350
Representative of breeders.

Dr Mick Lloyd (Chair)
Registrar Plant Variety Rights
GPO Box 858
CANBERRA ACT 2601

Mr Edgar (Ben) Swane
Director Swane Bros P/L
Galston Road
DURAL NSW 2158
Representative with appropriate qualifications and experience.

APPENDIX 3

Addresses of Plant Variety Protection Offices in UPOV Member States

AUSTRALIA

Registrar
Plant Variety Rights
PO Box 858
CANBERRA ACT 2601

Telephone (06) 271 6472
Telex 61 289
Telefax (06) 272 3650

BELGIUM

Ministere de l'agriculture
Service de la protection des obtentions vegetales
Manhattan Centre
Office Tower, 14eme etage
Avenue du Boulevard, 21
B-1210 Bruxelles

Telephone (02) 211 7211
Telex 22 033 agrila
Telefax (02) 211 7216

CANADA

The Commissioner of Plant Breeders' Rights
Plant Products Division
K.W. Neatby Bldg.
960 Carling Ave.
Ottawa, Ontario
K1A 0C6

Telephone (613) 995 7900
Telex 053-3283 canagric ott
Telefax (613) 992 5219

CZECHOSLOVAKIA

Federal Ministry of Economy
Division of Agriculture and Food
Nabr. kpt. Jarose 1000
170 32 Prague 7

Telephone 0042-2-389 2279
Telex 121 404
Telexfax 37 5641

DENMARK

Plantenyhedsnaevnet
Teglvaerksvej 10
Tystofte
DK-4230 Skaelskoer

Telephone 53 59 6141
Telex -
Telefax 53 59 0166

FRANCE

Comite de la protection des obtentions vegetales
11, rue Jean Nicot
F-75007 Paris

Telephone 42 75 9314
Telex 250 648
Telefax 42 75 9425

GERMANY

Budessortenamt
Osterfelddamm 80
Postfach 61 04 40
D-3000 Hannover 61

Telephone (0511) 5704-1
Telex 921 109 bsaha d
Telefax (0511) 56 33 62

HUNGARY

Office national des inventions
Orszagos Talalmanyi Hivatal
Garibaldi-u.2 - B.P. 552
H-1370 Budapest 5

Telephone (01) 112 893
Telex 224 700 oth h
Telefax -

IRELAND

Controller of Plant Breeders' Rights
Agriculture House
Kildare Street
Dublin 2

Telephone 353.1.78 90 11
Telex 93607
Telefax 353.1.61 62 63

ISRAEL

Plant Breeders' Rights Council
The Volcani Center
PO Box 6
Bet-Dagan 50 250

Telephone (972)-3-968 34 92
Telex 381 476 arovc il
Telefax (972)-3-968 34 92

ITALY

Ufficio Centrale Brevetti
Ministero dell'Industria,
Commercio e Artigianato
Via Molise N. 19
I-00187 Roma

Telephone (6) 47 05 30 68
Telex -
Telefax (6) 47 05 30 35

JAPAN

Director of Seeds and
Seedlings Division
Agricultural Production
Bureau
Ministry of Agriculture, Forestry and Fisheries
1-2-1 Kasumigaseki - Chiyoda-ku
Tokyo

Telephone (03) 591 05 24
Telex -
Telefax (03) 580 85 92

NETHERLANDS

Road voor het Kwekersrecht
Postbus 104
NL-6700 AC Wageningen

Telephone (08370) 190 31
Telex 75 180 rikilt
Telefax (08370) 258 67

NEW ZEALAND

Commissioner of Plant
Variety Rights
Plant Variety Rights Office
PO Box 24
Lincoln

Telephone (64-3) 325 2414
Telex -
Telefax (64-3) 325 2946

POLAND

The Director
Research Center of Cultivars
Testing
(COBORU)
63-022 Slupia Wielka

Telephone Sroda Wielkopolska
53558 (Prof. E. Bilski)
or 52341
Telex 412 276 cobo pl
Telefax -

SOUTH AFRICA

Department of Agriculture
Directorate of Plant and
Quality Control
Private Bag X179
Pretoria 0001

Telephone (012) 206-2360
Telex 323 264
Telefax (012) 206 27 86

SPAIN

Registro de Variedades
Instituto Nacional de Semillas
y Plantas de Vivero
Jose Abascal, 56
E-28003 Madrid

Telephone (1) 347 69 00
Telex 47 698 insm e
Telefax 47 698 insm e
Telefax (1) 442 82 64

SWEDEN

Statens vaxtsortnamnd
Box 1247
S-171 24 Solna

Telephone (08) 655 24 00
Telex 15 466
Telefax (08) 655 24 56

SWITZERLAND

Bundesamt fur Landwirtschaft
Buro fur Sortenschutz
Mattenhofstr. 5
CH-3003 Bern

Telephone (031) 61 25 24
Telex 913 162
Telefax (031) 61 26 34

UNITED KINGDOM

The Plant Variety Rights Office
White House Lane
Huntingdon Road
Cambridge CB3 OLF

Telephone (0223) 27 71 51
Telex 817 422 pvscam g
Telefax (0223) 34 23 86

UNITED STATES OF AMERICA

The Commissioner of Patents
U.S. Department of Commerce
Patent and Trademark Office
Washington, D.C. 20231

Telephone (1703) 305 86 00
Telex 710 955 06 71
Telefax (1703) 305 92 63

The Commissioner
Plant Variety Protection Office
Agricultural Marketing Service
Department of Agriculture
Beltsville, Maryland 20705-2351

Telephone (301) 504 55 18
Telex -
Telefax (301) 504 52 91

APPENDIX 4

Letters to the Editor

The editor of the Plant Varieties Journal will accept for publication, 'letters to the editor'.

Letter to the editor should aim to inform readers about plant varieties. The subject matter can be about breeding, genetics, new propagation methods, results of cultivar trials, trends in the market place, legal issues or injustices caused by PVR.

Readers are encouraged to continue to write letters to the Registrar on any matter concerning PVR. Letters to the Registrar in the normal course of office business would, of course, not be considered for publication in the Journal. Letters to the editor should be, therefore, clearly addressed to 'The Editor'.

Provision of information about plant varieties in general will be complementary to the Journal's main functions of:

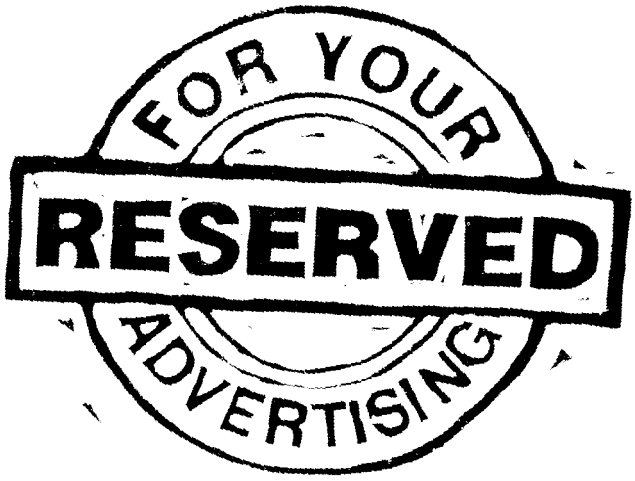
- informing the public about plant variety rights and new plant varieties in the PVR scheme
- providing an opportunity for both objections and comments about varieties for which rights have been applied.

Style and length of letters to the editor

Letters should be typewritten, double-spaced, concise, informative and not more than than 1000 words in length. References should use the Oxford (number) system of citations to literature. Figures, tables and captions to figures and tables should all be provided on separate sheets. The list of references to publications cited in the text should be numbered in the order they appear in the text. Only the name of the author, initials, date and abbreviated journal title, volume no., issue and first page of article referred to should be given in the reference list. For example:

1. Smith, JT (1986). Pl Var. J. 3(2): 23

For convenience, letters for publication may be submitted on disc. The preferred format is Microsoft Word for Windows.


FOR YOUR
RESERVED
ADVERTISING

PRINTED BY UNION OFFSET CO. PTY LTD, CANBERRA

PLANT VARIETY RIGHTS

COMMONWEALTH DEPARTMENT OF
PRIMARY INDUSTRIES AND ENERGY

AUSTRALIA

- Plant Breeders
- Seed Companies
- Nurseries
- Importers

Do you want exclusive rights to market your new plant variety?

Contact: The Registrar
PVR Office, DPIE
GPO Box 858 Canberra ACT 2601
Telephone: (06) 272 4228
Facsimile: (06) 272 3650

